

4. PIMOR, ET AL. v. VANHEE WOODWORKS, 23CV0578**Motion to Amend Judgment**

On April 10, 2026, pursuant to Code of Civil Procedure section 187, plaintiffs Clement Pimor and Emilie Cappella (collectively, “plaintiffs”) filed the instant motion to amend the default judgment entered in this case on March 12, 2026, against defendant Vanhee Woodworks (“defendant”) to add non-party Jeffrey Vanhee as a judgment debtor on the grounds that he is the sole proprietor of Vanhee Woodworks.

Proof of service attached to the motion shows it was electronically served upon defendant Vanhee Woodworks on April 10, 2026. To date, no opposition has been filed.

1. Background

This case arises from a residential remodel. On April 19, 2023, plaintiffs filed their complaint against defendant asserting causes of action for breach of contract, fraud, and disgorgement of profits.

In response to plaintiffs’ Form Interrogatories (Set One), defendant indicated it is a sole proprietorship owned by Jeffrey Vanhee. Jeffrey Vanhee verified defendant’s discovery responses stating he is the owner of Vanhee Woodworks.

On August 29, 2025, the court granted plaintiffs’ motion for terminating sanctions based on defendant’s repeated discovery violations and willful violations of this court’s orders. On March 12, 2026, the court entered default judgment against defendant in the total amount of \$465,024.84.

2. Discussion

Code of Civil Procedure section 187 provides: “When jurisdiction is, by the Constitution or by this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course or proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.” (*Ibid.*)

Code of Civil Procedure section 187 is often used as authority for amending a judgment to add a new judgment debtor who is the alter ego of the original judgment debtor, as in this case. (*NEC Electronics Inc. v. Hurt* (1989) 208 Cal.App.3d 772, 778 (*NEC Electronics*)). This procedure is appropriate when the alter ego had control of the litigation and reason to conduct the litigation with a degree of diligence corresponding to the personal risk. (*Id.*, at pp. 778–779.) The theory behind this procedure is that the court is not actually adding a new defendant, but merely inserting the correct name of the real defendant. (*Id.*, at p. 778.) “The greatest liberality is to be encouraged in the allowance of such amendments in order to see that justice is done. [Citation.]” (*Carr v. Barnabey’s Hotel Corp.* (1994) 23 Cal.App.4th 14, 20.)

Nonetheless, this procedure is not applicable to cases where the case was never contested on its merits. In *Motores De Mexicali v. Superior Court* (1958) 51 Cal.2d 172, the Supreme Court refused to allow the amendment of a default judgment to add parties because the new judgment debtors “in no way participated in the defense” and it would violate due process to summarily add new judgment debtors “without allowing them to litigate any questions beyond their relation to the allegedly *alter ego* corporation.” (*Id.*, at pp. 175–176.)

The court notes that the instant case did not proceed directly to default judgment. At least some written discovery was conducted before the court granted plaintiffs’ motion for terminating sanctions and entered default against defendant.

The court finds this situation to be similar to *NEC Electronics*, where, after answering the complaint, the defendant “let the matter proceed uncontested.” (*NEC Electronics, supra*, 208 Cal.App.3d at p. 780.) In effect, the matter proceeded as if it were a default. NEC Electronics Inc. (NEC) filed suit against Ph Components (Ph) to recover monies due on a sale of goods from NEC to Ph. Ph did not appear for trial. (*Id.*, at p. 775.) NEC obtained a \$139,366.37 judgment against Ph. Ph thereafter filed bankruptcy proceedings. (*Id.*, at p. 776.) NEC then filed a motion to amend the judgment to name

Porter Hurt, the sole shareholder and chief executive officer of Ph, as an additional judgment debtor, on an alter ego theory. (*Id.*, at pp. 775-776.) The trial court granted the motion, but the appellate court reversed. (*Id.*, at pp. 776, 782.)

The appellate court held that substantial evidence supported the trial court's alter ego finding. (*NEC Electronics Inc. v. Hurt, supra*, 208 Cal.App.3d at p. 778.) Hurt had received more than \$2.8 million in undocumented loans from Ph, on which he paid no interest. Hurt also received from Ph berthing fees, insurance, and fuel and maintenance expenses with respect to his privately owned boat. In addition, Ph provided a leased vehicle to Hurt's wife and made more than 30 mortgage payments on his personal residence. At the same time, Hurt paid numerous corporate obligations with his personal funds. (*Id.*, at p. 776.) Alter ego notwithstanding, the appellate court held that it was improper to amend the judgment to add Hurt as an additional judgment debtor. (*Id.*, at p. 778.)

The *NEC* court stated: “Judgments are often amended to add additional judgment debtors on the grounds that a person or entity is the alter ego of the original judgment debtor. [Citations.] This is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. [Citations.] ‘Such a procedure is an appropriate and complete method by which to bind new individual defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit.’ [Citation.] In other words, ‘[i]f the claim of individual liability is made at some later stage in the action, the judgment can be made individually binding on a person associated with the corporation only if the individual to be charged, personally or through a representative, had control of the litigation and occasion to conduct it with a diligence corresponding to the risk of personal liability that was involved.’ [Citation.]” (*NEC Electronics Inc. v. Hurt, supra*, 208 Cal.App.3d at pp. 778-779.)

The court remarked that surely Hurt, as chief executive officer, was aware of the lawsuit. However, awareness alone was not enough. (*NEC Electronics Inc. v. Hurt, supra*, 208 Cal.App.3d at p. 781.) Hurt had neither been named as a party to the litigation nor served in his individual capacity. (*Id.*, at p. 775, 780.) He was not at risk of personal liability and had no obligation to intervene. (*Id.*, at p. 780.) Furthermore, inasmuch as Ph neither appeared at trial nor made any attempt to defend the lawsuit, Hurt's individual interests could not have been represented in the litigation. (*Id.*, at pp. 780-781.) The court concluded: “ ‘Control of the litigation sufficient to overcome due process objections may consist of a combination of factors, usually including the financing of the litigation, the hiring of attorneys, and control over the course of the litigation.’ [Citation.] Clearly some active defense of the underlying claim is contemplated. [Citation.] In this case, Hurt delegated responsibility for the claim to [Ph's chief financial officer]. [The two men] did attempt to satisfy the creditors of Ph but were never actively involved in defending the NEC lawsuit. As a result, we do not believe that there is substantial evidence to support the trial court's conclusion that Hurt controlled the action between NEC and Ph.” (*Id.*, at p. 781.)

In this case, there is evidence that Mr. Vanhee verified defendant's written discovery responses. However, defendant was represented by counsel until May 30, 2025, when Mr. Vanhee signed a substitution of attorney on behalf of defendant indicating that defendant would proceed in pro per. This substitution attorney was the last filing defendant submitted in this case. On August 29, 2025, the court granted plaintiffs' motion for terminating sanctions based on defendant's repeated discovery violations and willful violations of this court's orders.

Similar to *NEC Electronics*, the instant case effectively proceeded as if it were a default. And, similar the sole shareholder of Ph in *NEC Electronics*, the court finds insufficient evidence in support of the instant motion to conclude that Jeffrey Vanhee controlled the litigation. The court denies the motion to amend without prejudice.

TENTATIVE RULING # 4: PLAINTIFFS' MOTION TO AMEND THE DEFAULT JUDGMENT ISSUED MARCH 12, 2026, IS DENIED WITHOUT PREJUDICE. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.